

STATE OF NEW YORK

7343--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 25, 2025

Introduced by M. of A. ROSENTHAL -- read once and referred to the Committee on Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to required comprehensive eye examinations for certain public school students

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 4 of section 905 of the education law, as
2 amended by chapter 477 of the laws of 2004, is amended to read as
3 follows:

4 4. (a) Vision screening examinations of students in the schools of
5 this state made pursuant to subdivision one of this section, or made
6 pursuant to the by-laws, regulations or practices of the board of educa-
7 tion of the city school district of the city of New York, shall be
8 subject to the provisions of this subdivision, and where inconsistent
9 herewith, the provisions of this subdivision shall prevail. In addition
10 to any vision screening examinations otherwise required by the
11 provisions or practices cited in this subdivision, all students who
12 enroll in a school of this state shall be tested for color perception,
13 distance acuity and near vision within six months of admission to the
14 school, or by such other date as may be prescribed in the regulations of
15 the commissioner. The results of any such vision screening examinations,
16 whether made pursuant to this subdivision or pursuant to the provisions
17 or practices cited in this subdivision, shall be in writing and shall be
18 made available to the student's parent or person in parental relation
19 and to any teacher of the student within the school while the student is
20 enrolled in the school, and shall be kept in a permanent file of the
21 school for at least as long as the minimum retention period for such
22 records, as prescribed by the commissioner pursuant to article fifty-
23 seven-A of the arts and cultural affairs law.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (b) Every student entering a public preschool or public school for the
2 first time shall undergo a comprehensive eye examination conducted by a
3 licensed optometrist or ophthalmologist. Such optometrist or ophthalmol-
4 ogist shall provide proof of such comprehensive eye examination for a
5 parent or person in parental relation to file with the school where the
6 student is enrolled.

7 (c) Any student who fails a school administered vision screening exam-
8 ination required pursuant to paragraph (a) of this subdivision shall be
9 required to undergo a comprehensive eye examination conducted by a
10 licensed optometrist or ophthalmologist and submit proof of such eye
11 examination within sixty days of notification of failing the school
12 administered vision screening examination.

13 (d) The department shall promulgate rules and regulations on how
14 schools will communicate with students' parents or persons in parental
15 relation before and after conducting vision screening examinations
16 pursuant to paragraph (a) of this subdivision, including:

17 (i) informing such parents or persons in parental relation of the date
18 that such vision screening examination will be conducted;

19 (ii) advising such parents or persons in parental relation that an
20 in-school vision screening examination is not the equivalent of a
21 comprehensive eye examination performed by a licensed optometrist or
22 ophthalmologist;

23 (iii) providing the results of such vision screening examination in a
24 language and manner understandable to such parent or persons in parental
25 relation;

26 (iv) informing the parents or persons in parental relation of students
27 who fail a vision screening examination of such parents' or persons in
28 parental relation's duty to ensure that such student receives a compre-
29 hensive eye examination from a licensed optometrist or ophthalmologist;
30 and

31 (v) providing such parents or persons in parental relation with a list
32 of resources for low-cost or no-cost pediatric eye examinations and
33 publishing such list on the department's website. The list shall be
34 organized by zip code. The department shall update such list on an annu-
35 al basis.

36 (e) The department shall provide access to comprehensive eye examina-
37 tions to students without health insurance at no cost.

38 § 2. This act shall take effect immediately.